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TAM CAPITAL

NOMINATION & REMUNERATAION COMMITTEE CHARTER

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1. Purpose of the Committee

The Board Nomination & Remuneration Committee (hereinafter referred to as the "Committee", or “NRC”) serves as a sub-committee to the Board of Directors of Tam Capital (“Company”), formed to represent and assist the Board in fulfilling its oversight responsibilities relating to:

1. Nominations for the positions of Board of Directors, Board sub-committees and Executive Management

2. Remuneration of the Board of Directors, Board sub-committees and Executive Management

This Charter aims to govern the Nomination and Remuneration Committee by outlining its responsibilities, powers, procedures, and member selection rules in line with relevant regulations and best practices.

2. Committee Duties & Responsibilities

The Committee's duties and responsibilities shall be as follows:

1) Remuneration

- Develop Tam Capital's Remunerations Policy of Board Members, Committees Members and Executive Management and providing recommendations thereon to the Board for approval.
- Review the Remuneration Policy regularly to ensure consistency with the possible changes in relevant legislation and regulations, Tam Capital's strategic objectives, and the skills and qualifications required, and recommending proposed changes to the Board.
- Recommending to the Board the remunerations of the members of the Board, committees and Executive Management in accordance with the Bye-Laws and the Ordinary General Assembly.
- Preparing an annual report on remunerations granted to the members of the Board, committees, and Executive Management.
- Specifying and recommending the types of rewards to employees of the Company.

2) Board of Directors

- Develop criterion for Board Membership and recommending it to the Board for approval by the Ordinary General Assembly.
- Recommend to the Board nominees to Board membership.
- Conduct an annual review of the required skills for the Board membership and preparing a description of the required capabilities and qualifications.
- Review the Board Membership criterion regularly to ensure its consistency with the possible changes in the relevant legislation and regulations, Tam Capital's strategic objectives, skills and qualifications required, and recommending to the Board proposed changes, if any.
- Examine conflict of interest status for those who desire to run for the Board membership, and making related recommendations to the Board.
- Examine the structure of the Board and recommending possible changes.

- Establish procedures to deal with the vacancies of the Board or committees and making recommendations thereon.
- Providing recommendations to the Board on performance measures to evaluate the Board's activities, members, and committees.

3) Board Members

- Verify annually, the independence of independent directors and absence of any conflict of interest in case the independent director is also a member of the Board of another Company.
- Verify whether a Board member is engaged in any business that competes with the Tam Capital's business, or competes in any activity or a branch of an activity carried out by the Tam Capital ("Competing Business"), and making recommendations to the Board in that respect.
- Develop job descriptions of Executive, Non-executive, and Independent directors.
- Recommend to the Board re-nomination or dismissal of a Board member or committee member.

4) Orientation Program to New Board Members

Recommend to the Board, an orientation program for new Board members. The program should cover the Company's activity, nature of its business, and its financial and legal aspects.

5) Senior Executives

- Recommend to the Board appropriate policies and standards for the appointment of Senior Executives and identifying the required capabilities and skills; and reviewing such policies and standards regularly to ensure their consistency with changes in Tam Capital's strategic objectives and the required skills and qualifications to achieve them.
- Develop job descriptions for Senior Executives, reviewing Tam Capital's organizational structure, and making recommendations on possible changes.
- Developing succession planning processes for cases of vacancy of the position of any Senior Executive, and making recommendations thereon.

3. Committee Formation

- The Committee is established by the Board.

- The Committee consists of 3 to 5 members, including at least one independent Board member, selected based on the following:

  1) Relevant expertise for the Committee's duties.
  2) Understanding of Tam Capital's business and the necessary skills.
  3) Possession of a university degree.
  4) No prior convictions for dishonesty, breach of trust, or legal violations.
  5) Compliance with applicable laws and regulations.

- The Board will appoint a Chairman (an independent director). In the Chairman's absence, Committee members may appoint a temporary chair.

- A member's role ends if:
  - The Board's term expires.
  - They resign.
  - They develop a mental or physical condition preventing them from fulfilling duties.
  - They are declared bankrupt, insolvent, or convicted of fraud or similar crimes.
  - The Board terminates their membership for serious breaches of duties, unexcused absences from three consecutive meetings, or other Board decisions.
  - They no longer meet the membership criteria.

- If a member's position becomes vacant, the Board can appoint a replacement who meets the membership criteria to complete the term.

- The Committee will have a Secretary appointed by the Board

4. Committee's Authority

The Committee shall have the following authorities to carry out its duties:

- Request information and data that may assist the Committee in studying the matters falling within its competencies, or otherwise referred thereto by the Board;
- Subject to the Board approval, using the services of any expert, specialist or others to study the matters that fall within its duties and responsibilities.

1) Authorities of the Chairman and Secretary

The *Committee Chairman* shall have the following duties:

- Leadership of the Committee meetings and seeking to enhance their effectiveness.
- Representing the Committee before the Board.
- Convening the Committee meetings, and specifying their times, dates, and venues in coordination with Committee members.
- Guiding meeting agenda, taking into consideration the topics that any Committee member wishes to include.
- Ensuring that the topics presented to the Committee are accompanied by sufficient information to enable decision-making.
- Ensuring that sufficient time is made available for the discussion of agenda items.
- Enhancing the active participation of the Committee members in the Committee meetings through their study and discussion of the agenda items and expressing their views in such a manner that contributes to the achievement of the Committee's objectives.
- Ensure provision of complete and correct information to Committee members in a timely manner to enable them performing their duties and responsibilities.
- Prepare regular reports on the Committee's activities and submitting them with its recommendations and conclusions to the Board.
- Following up the implementation of the Committee decisions.
- Arranging for conducting the Committee's periodical performance evaluation.

The *Secretary* shall have the following duties and responsibilities:

- Coordinating the Committee's meetings and proposing agenda items in coordination with the Committee Chairman.
- Notifying the Committee members of meeting dates and providing them with meeting agenda and information necessary for studying the agenda items.
- Attending and documenting the Committee meetings and preparing the minutes of meeting and maintaining them in a special record.
- Maintaining documents, records and reports submitted to or issued by the Committee.
- Providing assistance and advice to the Committee in matters falling within its competencies.

2) Member's Duties and Responsibilities

- Complying with the provisions of the Companies Law and its Implementing Regulations, the Capital Market Law and its Implementing Regulations, other related laws and regulations, and Tam Capital's Bye-Laws in exercising his/her duties. He/ She shall refrain from engaging or participating in any transaction that may harm the interests of Tam Capital.
- Acquainting himself/herself of the Committee's duties and responsibilities, and devoting sufficient time to exercise his/her role in achieving them.
- Carrying out his duties free from any external influence, whether from inside and outside Tam Capital, and not prioritizing his/her personal interests over those of Tam Capital.
- Refraining from acceptance of gifts from any person who has business dealings with Tam Capital.
- Prepare for and attending the meetings, and not absenting himself/herself except for valid reasons that are notified to the Committee Chairman in advance and be acceptable to the Committee.
- Participate effectively in Committee meetings through his/her prior examination and discussion of agenda items.
- Seeking to acquaint himself/herself with the regulatory updates related to the areas and subjects relevant to the Committee's duties and responsibilities.
- Seeking to acquaint himself/herself with the recent developments related to Tam Capital's activities and business, and other relevant areas.

3) Committee Meetings

- The Committee meets at least once a year at the Chairman's invitation. The Committee Chairman shall also convene a meeting in an exceptional case such as when it is requested by the Board or two Committee members; or if the circumstances so require, provided that the reasons for such exceptional meeting are stated.
- The Committee adopts the dates and agendas of meetings of a fiscal year prior to its commencement. The meeting's invitation shall be issued at least 10 days in advance and be accompanied by the agenda as well as documents and information necessary for discussing and deciding on the agenda items.
- In exceptional cases, meeting invitations may be issued at least 5 days prior to the meeting date in accordance with the invitation procedures specified in this Charter.
- The Committee holds its meetings at the Company headquarters; however, they may be held elsewhere if necessary, subject to the Board approval.
- The quorum of the Committee's meeting requires attendance of a majority of its members. A member – in cases of necessity – may attend using one of the forms of communication, subject to the Committee approval.
- The Committee meeting shall be attended by its members only. However, a member of the Board or Executive Management, who is not a member to the Committee, may only attend that meeting upon invitation by the Committee to take his/her opinion or advice.

- Committee decisions are made by a majority vote of the present members. When votes are equal, the Chairman's vote shall be casting.
- A Committee member is entitled to object to any Committee's decision, provided that his/her objection is expressly stated in the meeting minutes together with the reasons for the objection. Absence from a meetings at which a decision is made, does not preclude the member's liability for implementing the decision unless it is proven that the member was unaware of the decision or was unable to challenge it immediately after knowing of it.

4) Meetings Documentation

- The Committee Secretary shall prepare minutes of meeting, which must include:
  i. The venue, date, and start and end times of the meeting;
  ii. Names of present and absent members as well as the names of invitees who are not Committee members;
  iii. Committee deliberations and resolutions, together with stating the results of votes and reasons for objections, if any; and
  iv. Specifying the party to be responsible for implementing resolutions issued as well as setting the implementation timeline and follow-up mechanism.

- The Committee Secretary shall send the draft minutes of the meeting to Committee members within a maximum of 10 days from the date of meeting.
- After incorporating the Committee members' comments into the draft minutes, and obtaining the meeting's Chairman approval, the Committee Secretary shall send the amended draft to the Committee members for its approval.
- The meeting's minutes, agenda and all accompanying documents must be maintained in a special record to be signed by the Committee Chairman and Secretary.
- The Committee Chairman shall submit the Committee's recommendations and conclusions to the Board at the first Board meeting following the Committee meeting.
- The Committee shall review and evaluates its performance on a regular basis against such indicators as the Committee's effectiveness in carrying out its prescribed duties and responsibilities.

5. General Provisions

1) Confidentiality

A Committee member must maintain confidentiality of the information and documents made available to him/her. He/ She may, in no case and even if his/her membership is terminated, disclose them to any person or entity unless he/she is so authorized by the Board, nor may he/she use any such information for his/her personal benefit or for that of his relatives or other third parties. Tam Capital has the right to demand compensation in case of violation of the provisions of this article. This obligation also applies to the Committee's Secretary.

2) Conflict of Interest

- Members must avoid situations that lead to conflicts of interest with Tam Capital. A conflict of interest means that there is a direct or indirect interest to a member in any matter listed on the Committee agenda; and such an interest may (or is believed to) influence the independence of the member's opinion, which is assumed to reflect his/her professional views.
- If a member has a conflict of interest in relation to any matter on the Committee agenda, he must disclose such conflict before starting the discussion of that matter, provided that it is stated in the minutes of the meeting. In such a case, the member must not attend nor participate in the discussion of that matter nor vote thereon.

3) Committee Members Remunerations

- Committee members are entitled to an annual remuneration in accordance with the Remuneration Policy of Board Members, Committees Members, and Executive Management approved by the General Assembly.
- The Board shall determine the remunerations and allowances to be paid to the Committee's Secretary.
- In the event of a decision by the General Assembly to terminate the membership of a Committee member due to his/her absence from three consecutive meetings within one year, without an excuse acceptable to the Board, the member shall not be entitled to any remunerations or compensations for the period following the last meeting he/she attended.
- Tam Capital has the right to claim compensation for damage to its reputation, and recover the remunerations and allowances paid and any other costs incurred to enable the member to perform his/her responsibilities if that member committed an offence of dishonesty, breach of trust, forgery, or violation of the laws and regulations in Saudi Arabia or any

other country; or when he fails to carry out his responsibilities, duties and tasks to the extent that results in damage to the Company's interest.

6. Amendment to the Charter

This Charter is subject to regular review, atleast once in 3 years, for enhancement and keeping it abreast with the relevant laws and regulations updates, and according to the discretion of the Board.